

Document 4: The 83(b) Election Form & IRS Cover Letter

*Purpose: To tell the IRS you want to be taxed on your stock's value **now** (\$0) rather than when it vests in 4 years (when it could be worth millions).*

PART A: THE COVER LETTER (To be placed on top)

Department of the Treasury Internal Revenue Service Austin, TX 73301-0215 USA RE: Election under Code Section 83(b) To Whom It May Concern,

Enclosed please find an election under Section 83(b) of the Internal Revenue Code of 1986, as amended, for **[Your Full Name]**.

I am a non-US resident/citizen currently applying for a US Individual Taxpayer Identification Number (ITIN) / Social Security Number (SSN). I am filing this election now to comply with the mandatory 30-day filing window from the date of stock transfer.

Please acknowledge receipt of this election by date-stamping the enclosed extra copy of this letter and the election form and returning them to me in the self-addressed, stamped envelope provided.

Sincerely,

[Your Name]

PART B: THE ELECTION FORM

ELECTION PURSUANT TO SECTION 83(b) OF THE INTERNAL REVENUE CODE

- Taxpayer Information: * Name:** [Your Full Name]
 - Address:** [Your Current International/European Address]
 - TIN:** [Write "APPLIED FOR" if you don't have an SSN/ITIN yet]
- Property Description:** [Number of shares, e.g., 5,100,000] shares of Common Stock of **OptiqAI Inc.** (a Delaware Corporation).
- Date of Transfer:** [Date you signed the stock purchase via Stripe/Clerky]
Taxable Year: 2026
- Restrictions:** The shares are subject to a right of repurchase by the Company at the original purchase price, which right lapses over a period of four years (the "Vesting Schedule").
- Fair Market Value:** The fair market value of the shares at the time of transfer was **[\$[Total Value, usually \$51.00]]** (\$0.00001 per share).
- Amount Paid:** The taxpayer paid **[\$[Total Value, usually \$51.00]]** for the property.
- Amount to be Included in Income:** **\$0.00** (Fair Market Value minus Amount Paid).

SIGNATURE:

[Your Name]

CEO Logistics: How to "Download" and Mail This Today

1. **Copy-Paste:** Put both Part A and Part B into a document. Save as **OptiqAI_83b_Election.pdf**.
2. **The 30-Day Rule:** You have exactly 30 days from the day you finish your Stripe Atlas/Clerky setup to get this in the mail.
3. **Mailing:** Since you are outside the US, use a **tracked service** (DHL/FedEx/UPS).
 - **The "Receipt" trick:** Include a second copy of everything and a "Self-Addressed Stamped Envelope." The IRS will stamp your copy and mail it back to you. This is your "Insurance Policy" for when you go public.
4. **Evidence:** Take a photo of the envelope and the tracking receipt. Upload it to your "O-1 Visa Evidence" folder.